Court File No.:

ONTARIO SUPERIOR COURT OF JUSTICE

B E T W E E N:

MASOUMEH SARMAD

Plaintiff

And

KHANH MINH NGO and YANJUN LIU

Defendants

STATEMENT OF CLAIM

TO THE DEFENDANTS

A LEGAL PROCEEDING HAS BEEN COMMENCED AGAINST YOU by the Plaintiff. The claim made against you is set out in the following pages.

IF YOU WISH TO DEFEND THIS PROCEEDING, you or an Ontario lawyer acting for you must prepare a Statement of Defence in Form 18A prescribed by the Rules of Civil Procedure, serve it on the Plaintiff's lawyer or, where the Plaintiff does not have a lawyer, serve it on the Plaintiff, and file, with proof of service, in this court office, WITHIN TWENTY DAYS after this Statement of Claim is served on you, if you are served in Ontario.

If you are served in another province or territory of Canada or in the United States of America, the period for serving and filing your Statement of Defence is forty days. If you are served outside Canada and the United States of America, the period is sixty days.

Instead of serving and filing a Statement of Defence, you may serve and file a Notice of Intent to Defend in Form 18B by the Rules of Civil Procedure. This will entitle you to ten more days within which to serve and file your Statement of Defence.

IF YOU FAIL TO DEFEND THIS PROCEEDING, JUDGMENT MAY BE GIVEN AGAINST YOU IN YOUR ABSENCE AND WITHOUT FURTHER NOTICE TO YOU.

IF YOU WISH TO DEFEND THIS PROCEEDING BUT ARE UNABLE TO PAY LEGAL FEES, LEGAL AID MAY BE AVAILABLE TO YOU BY CONTACTING A LOCAL LEGAL AID OFFICE.

TAKE NOTICE: THIS ACTION WILL AUTOMATICALLY BE DISMISSED if it has not been set down for trial or terminated by any means within five years after the action was commenced unless otherwise ordered by the court.

Issued by:

Local Registrar

50 Eagle Street West

Newmarket, ON L3Y 6B1.

TO: KHANH MINH NGO

28 Pine Hollow Cres.

Maple, ON L6A 2L6

AND TO: YANJUN LIU

2599 Old Carriage Road

Mississauga, ON L5C 1Y6

C L A I M

1. The Plaintiff, MASOUMEH SARMAD (hereinafter "SARMAD"), claims as against the Defendants for the following: (a) General damages on her behalf in the sum of $300,000.00; (b) Special damages on her behalf in the sum of $1,000,000.00; (c) Pre-judgment interest and post-judgment interest pursuant to the provisions of the *Courts of Justice Act*; (d) The costs of this action; (e) Such further and other relief as this Honourable Court may deem just.

2. The Plaintiff, SARMAD, resides in the City of Richmond Hill, in the Province of Ontario, and was at all material times the operator of a 2019 BMW motor vehicle bearing license plate number CBXE976 (hereinafter referred to as "PLAINTIFF VEHICLE").

3. The Defendant, KHANH MINH NGO (hereinafter "NGO"), resides in the City of Vaughan (Maple), in the Province of Ontario, and was at all material times the operator and owner of a 2013 Mercedes-Benz motor vehicle bearing license plate CWKT387 (hereinafter referred to as "NGO VEHICLE").

4. The Defendant, YANJUN LIU (hereinafter "LIU"), resides in the City of Mississauga, in the Province of Ontario, and was at all material times the operator and owner of a 2014 Subaru motor vehicle bearing license plate CPMY268 (hereinafter referred to as "LIU VEHICLE").

5. On or about August 23, 2025, the Plaintiff, SARMAD, was a seated and belted driver in the Plaintiff Vehicle, stopped at a red traffic light on Highway 7 West in the vicinity of Jane Street, in the City of Vaughan. Suddenly and without any warning, Liu Vehicle rear-ended the Plaintiff vehicle. The Liu vehicle was also rear-ended by the NGO vehicle. The sequence of the collisions is unknown at this time. The Plaintiff experienced only one impact.

6. As a result of the accident, the Plaintiff, SARMAD, sustained injuries of a serious and permanent nature.

7. The Plaintiff states that the aforesaid collision and resulting injuries were caused by the negligence of the Defendants, NGO and LIU, particulars of which are as follows:

A. As against the Defendants, NGO and LIU, as Operators: a. They failed to keep a proper or any look out; b. They failed to keep their motor vehicles under proper control; c. They were travelling at an excessive rate of speed under the circumstances; d. They were operating motor vehicles which they knew or ought to have known were in a defective mechanical condition; e. They failed to apply the brakes on their motor vehicles in time, or properly, or at all, or in the alternative, were operating motor vehicles with defective brakes and/or tires; f. On the occasion in question, they were incompetent drivers lacking in reasonable skill, ability, training, and self-command and ought not to have attempted to operate the said motor vehicles; g. They operated their motor vehicles while under the influence of alcohol or drugs when they knew or ought to have known that their ability to operate the same was affected and that a collision was likely to occur; h. They created an emergency and a situation of danger; i. They failed to obey traffic signals and rules of the road, including following the Plaintiff Vehicle too closely; and j. They had the last clear chance to avoid a collision but failed to avail themselves of said opportunity although they could have done so by the exercise of reasonable care, skill, and ability.

B. As against the Defendants, NGO and LIU, as Owners: a. They failed to have their respective vehicles in a fit and proper condition, suitable for safe operation; b. They permitted the operation of their vehicles when they knew or ought to have known that, under the circumstances, the operators were incompetent drivers lacking in reasonable skill and self-command who ought not to have attempted to operate the vehicles; c. They failed to have the brakes, steering mechanism, and/or other equipment on their vehicles in proper working order.

8. As a result of said collision, the Plaintiff, SARMAD, suffered permanent and serious impairments of important physical, mental, and/or psychological functions, including right facial nerve paresis (facial palsy) causing an inability to close her right eye, severe and ongoing headaches, probable spondylolysis at L5, severe musculoskeletal pain and spasms, and injuries to her neck, back, and shoulders. She also sustained a spraining, straining, and tearing of the muscles, ligaments, tendons, discs, nerves, and vessels throughout the body.

9. As a further result of the negligence of the Defendants, the Plaintiff has suffered pecuniary damages/losses up to the present and will continue to suffer pecuniary damages/losses in the future, the full particulars of which are not known at this time.

10. The Plaintiff pleads that her injuries are accompanied by severe headaches, right eye weakness, dizziness, shock, severe anxiety, low mood, sleep disturbances, emotional trauma, chronic pain, weakness, diminished energy, and stiffness which continue to the present and will continue in the future. The Plaintiff, SARMAD, has sustained and will continue to sustain pain and suffering, loss of enjoyment of life, and loss of amenities. She is unable to participate in those recreational, social, household, athletic, and employment activities to the extent to which she participated in such activities prior to the negligence of the Defendants.

11. The Plaintiff, SARMAD, incurred and will continue to incur health care expenses including expenses for hospitalization, medication (including Celebrex, Baclofen, Dexilant, and Tylenol), rehabilitation, physiotherapy, medical treatment, and other forms of care, the full particulars of which are not within her knowledge at this time. The Plaintiff, SARMAD, claims the value of the losses not covered and/or paid for by the accident benefit insurer from the tort Defendants.

12. The Plaintiff, SARMAD, pleads and the fact is that she is unable to perform household chores for herself to the extent that she was able to do so before the collision and resultant injuries and will require assistance in the future to complete such chores. The Plaintiff claims the value of the losses not covered and/or paid for by the accident benefit insurer from the tort Defendants.

13. The Plaintiff, SARMAD, has sustained a loss of income and will continue to sustain a loss of income, loss of competitive advantage in the employment field, the loss of income earning potential, and a diminution of income earning capacity. The Plaintiff, SARMAD, claims the value of the losses not covered and/or paid for by the accident benefit insurer from the tort Defendants.

14. The Plaintiff further pleads and relies on the *Negligence Act*, R.S.O. 1990, c.N. 1. as amended, and the *Highway Traffic Act*, R.S.O. 1990, c. H.8, as amended.

15. The Plaintiff proposes that the within action be tried at the City of Newmarket, in the Province of Ontario.

Date of Issue: _____

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SARMAD **v.** **NGO, et. al.**

Plaintiff Defendants

Court File No.:

ONTARIO

SUPERIOR COURT OF JUSTICE

Proceeding commenced at Newmarket

STATEMENT OF CLAIM

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